

24TRCV03653 24TRCV03653

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 24TRCV03653 Hearing Date: September 2, 2026 Dept: B

Moving

Party: Defendant AIDS Healthcare Foundation

Responding

Party: Plaintiff

American Honda Motor Co., Inc.

Motion to Tax Costs

The Court considered the moving, opposition, and reply papers.

RULING

See below.

BACKGROUND

On

October 31, 2024, American Honda Motor Co., Inc. filed a complaint against Aids Healthcare Foundation for (1) breach of contract, (2) breach of the implied covenant of good faith and fair dealing, and (3) money due/common count.

On

January 5, 2026, plaintiff filed a FAC.

On May

14, 2026, the Court granted plaintiff's motion for summary judgment.

On May

22, 2026, judgment was entered in favor of plaintiff.

On

June 17, 2026, plaintiff filed a memorandum of costs.

LEGAL

AUTHORITY

“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3).” Cal. Rules of Court, Rule 3.1700(b)(1).

“Except

as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. This means that the prevailing party is entitled to all of his costs unless another statute provides otherwise. Absent such statutory authority, the court has no discretion to deny costs to the prevailing party.” Nelson v. Anderson (1999) 72 Cal. App. 4th 111, 128-29 (citations and internal quotations omitted); CCP §1032(b) (“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding”).

CCP

§1033.5(c) states, in relevant part:

“Any award for costs shall be subject to the following:

(1) Costs are allowable if incurred, whether or not paid.

(2)

Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.

(3)

Allowable costs shall be reasonable in amount.

(4)

Items not mentioned in this section . . . may be allowed . . . in the Court's discretion."

"If

the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs."

Ladas v. California State Automotive Assoc. (1993) 19 Cal. App.

4th 761, 774 (citation omitted). Id. "The court's first determination, therefore,

is whether the statute expressly allows the particular item, and whether it

appears proper on its face. If so, the

burden is on the objecting party to show them to be unnecessary or

unreasonable." Nelson v. Anderson

(1999) 72 Cal. App. 4th 111, 131 (citations omitted). "[I]t is not enough for the losing party to

attack submitted costs by arguing that he thinks the costs were not necessary

or reasonable. Rather the losing party

has the burden to present evidence and prove that the claimed costs are not

recoverable." Seever v. Copley Press,

Inc. (2006) 141 Cal. App. 4th 1550, 1557.

DISCUSSION

Defendant requests that the Court strike

or tax Items 1, 4, 5, and 15, in the amount of \$6818.22 of the \$13,407.80 in costs requested.

Item 1: Filing fees in the amount of \$337.22

Under CCP §1033.5, "(a) The

following items are allowable as costs under Section 1032: (1) Filing, motion, and jury fees."

Defendant disputes the following

costs: \$44.25 – 2/4/25 notice of

appearance, notice of case re-assignment; \$44.25 – 12/30/25 notice of

withdrawal; \$115.35 8/26/25 motion to compel discovery responses and

declaration; \$22.12 – reply in support of motion to compel; \$64.25 12/19/25 stipulation

to file FAC; and \$47 – 1/5/26 FAC.

Defendant contends that the costs fall into three categories: filing fees for notices regarding changes in plaintiff's associate counsel; stipulation to amend and for filing the FAC; unsuccessful motion to compel further responses to special interrogatories. As to all, defendant argues that the costs were not reasonably necessary.

In opposition, plaintiff argues that the filings were reasonably necessary.

The Court finds that such costs are recoverable.

Item 4: Deposition costs in the amount of \$1560.50

Under CCP 1033.5, "(a) The following items are allowable as costs under Section 1032: . . . (3)(A) Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed. . . .

Defendant disputes the following costs: \$555 – 8/19/25 Esquire Deposition Solutions, deposition of Mrk Dyer; \$905 – 8/22/25 Esquire Deposition Solution, deposition of Christopher Hoefel (non-appearance half day fee); \$100 – 10/17/25 – Esquire Deposition Solutions – 10/17/25 deposition of Hoefel. Defendant argues that the rough ASCII Transcript and AI-generated "intelligent summary" were not reasonably necessary, but merely convenient. As for Hoefel's non-appearance fee, defendant asserts that plaintiff's counsel had forty-eight hours notice that Hoefel's deposition needed to be rescheduled.

In opposition, plaintiff explains that the challenged costs are "part of an overall package deal" that Esquire offers that results in lower overall charges for the transcript. Plaintiff also asserts that the rough ASCII transcripts were necessary. Plaintiff notes that it had to file a motion to compel production of further documents almost immediately and prepare for summary judgment. Plaintiff argues that the summary allowed defendant to "quickly and efficiently extract the key excerpts." As for the non-appearance fee, plaintiff contends that defendant's cancellation "appeared tactical" to "try to address the issues that came out" of another deposition. Plaintiff argues that the costs were reasonably incurred in defendant's good faith effort to obtain testimony from a

key witness.

With the exception of \$200.00 for intelligent summaries, the Court finds that the costs are recoverable as they were reasonably necessary.

The Court STRIKES \$200.00 in costs.

Item 5: Service of process in the amount of \$2535.50

Defendant disputes the following costs: \$160.75 – 10/31/24 service fee – redacted complaint, civil case cover sheet addendum; \$158.25 – 6/10/25 – deposition subpoena for Parata Systems; \$2216.50 – deposition subpoena from 360 Construction.

Defendant contends that the service fee was the result of a defective attempt and thus not reasonably necessary to the conduct of the litigation. Defendant asserts that the fee dated 6/10/25 is duplicative of the one on 6/12/25. As for the deposition subpoena to 360 Construction, defendant asserts that the costs are the result of thirteen service attempts.

In opposition, plaintiff argues that the costs are proper and recoverable. Plaintiff asserts that it reasonably attempted service at defendant's known business location. Plaintiff disputes that the two Parata Systems service fees are duplicative, noting that service of process frequently requires multiple attempts. As for costs incurred in attempting service on 360 Construction, third party witnesses are often difficult to locate and serve and that the multiple attempts reflect Honda's diligence in attempting to obtain necessary business records.

The Court finds that the costs were reasonably necessary and are recoverable.

Item 15: other in the amount of \$2385

Defendant disputes the fees for "Relativity document review platform licenses" for eight months, totaling \$2385. Defendant argues that fees for housing electronic documents have not been an allowable costs under CCP §1033.5(a)(15) since January 1, 2022.

Further, the claimed costs were not court-ordered and are unrecoverable investigation expenses.

In opposition, plaintiff argues that e-discovery housing costs remain recoverable under CCP §1033.5(c)(4) in the Court's discretion. Plaintiff contends that it was forced to collect entire custodial files of employees, to host them, and then run search terms through them in order to respond to defendant's discovery requests. Plaintiff contends that it could not have performed such document search, collection, and production, without an e-discovery platform such as Relativity.

The Court finds that such costs are recoverable as they were reasonably necessary.

ORDER

The motion is GRANTED IN PART.

The Court strikes \$200.00 in costs.

Defendant is ordered to give notice of ruling.